

		Accordingly, Larsen E. Ensberg and Ensberg Law Group, APLC are relieved as counsel of record for Plaintiff Darrell William Lawrence. The order will take effect once moving attorney files proof of service of this Order on Plaintiff Darrell William Lawrence. Moving attorney to provide notice.
9	Davinci vs. Ford Motor Company 2024-01386245	Motion to Compel Deposition (Oral or Written) Defendant Ford Motor Company's Motion to Compel Plaintiff's Deposition is GRANTED. Since May 2024, Ford has noticed Plaintiff's deposition seven times. Ford asked for alternative dates on each occasion and Plaintiff failed to appear for the deposition on each occasion. Only after the instant motion was filed did Plaintiff agree to appear at her deposition on August 27, 2026. In opposition, Plaintiff fails to provide a legitimate justification for her repeated delays in scheduling her deposition. Accordingly, the motion to compel Plaintiff's deposition is GRANTED. (Code Civ. Proc., § 2025.450(a).) Plaintiff's deposition shall take place on August 27, 2026, as agreed upon by the parties, or no later than 30 days from the date of this hearing. The Court finds no substantial justification for Plaintiff's failure to appear for deposition or provide alternate dates for the deposition until after the motion was filed. Therefore, sanctions are justified. The Court awards sanctions in the amount of \$560.00 in favor of Ford and against Plaintiff and her counsel or record. (Code Civ. Proc., § 2025.450(g).) Sanctions to be paid within 30 days. Plaintiff's request for sanctions is DENIED.

		Moving Party shall give notice.
11	Stump vs. Viking Security Services Inc. 2023-01326370	Motion for Summary Judgment and/or Adjudication When a defendant seeks summary judgment, it bears the burden of proof by a preponderance of the evidence to establish that an action has no merit, that plaintiff cannot prove an element or some elements of a cause of action, or that a complete defense is established as a matter of law entitling it to judgment. C.C.P. § 437c (p) (2), and Hunter v. Pacific Mechanical Corp. (1995) 37 Cal.App.4th 1282, 1287. If the moving party cannot meet its burden, then the opposing party has no burden to oppose the motion by submitting evidence demonstrating that triable issues of fact exist in the case. Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 840. But if the moving party carries its initial burden, then the party opposing the motion must produce admissible evidence to show that a triable issue of fact, or issues of fact, exists. C.C.P. § 437c (p) (2), and Green v. Ralee Engineering Co. (1998) 19 Cal.4th 66, 72. The moving party's papers are to be strictly construed, while the opposing party's papers are to be liberally construed. (Committee to Save Beverly Highland Homes Ass'n v. Beverly Highland (2001) 92 Cal.App.4th 1247, 1260.) A court may not make credibility determinations or weigh the evidence on a motion for summary judgment or adjudication, and all evidentiary conflicts are to be resolved against the moving party. (McCabe v. American Honda Motor Corp. (2002) 100 Cal.App.4th 1111, 1119.)